

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2018-2592

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING WILLIAM
ROY CONNIFF, LICENSE NO. LPC-0014460,

Respondent.

The State Board of Licensed Professional Counselor Examiners (“Board”), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge (“ALJ”) in accordance with the provisions of section 12-43-101, et al., of the Colorado Revised Statutes (“Act”) and the Administrative Procedure Act (“APA”), and having reviewed the ALJ’s Initial Decision Upon Default, hereby enters the following findings and order:

1. Respondent William Roy Conniff (“Respondent”) was served with a Notice of Charges on November 28, 2018.
2. On or about January 16, 2019, the Board, by and through counsel, filed a Motion for Entry of Default with the Office of Administrative Courts. The ALJ issued an Entry of Default on February 11, 2019.
3. The ALJ’s Entry of Default was mailed to Respondent by first class mail to the address of record on February 11, 2019.
4. The ALJ’s Initial Decision Upon Default was rendered on April 3, 2019 and received by the Board on April 16, 2019. A copy of the Initial Decision Upon Default is attached to this Order and incorporated herein by reference.
5. The Initial Decision was served on Respondent and the Board’s prosecuting attorney on April 23, 2019, via first-class mail and electronic mail.
6. Neither the Board’s prosecuting attorney nor Respondent filed exceptions.
7. Upon review of the Initial Decision and Record, the Board hereby:
 - a. Accepts the Findings of Fact, as set forth in paragraphs one through seven of the attached Initial Decision, in their entirety.

- b. Adopts the Conclusions of Law, as set forth in paragraphs one through six of the attached Initial Decision, in their entirety.
- c. Adopts the ALJ's recommended sanction that Respondent's license to practice as a professional counselor is suspended until he submits to the required examination, as set forth in the final paragraph of the attached Initial Decision.

IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice professional counseling in the state of Colorado is hereby SUSPENDED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-43-217, C.R.S.

SO ORDERED this 15th day of July, 2019.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



KAREN M. MCGOVERN
DEPUTY DIRECTOR
OFFICE OF LEGAL AFFAIRS

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, Denver, CO 80203	 COURT USE ONLY 	
State Board of Licensed Professional Counselor Examiners Petitioner, VS. William R Conniff Respondent.		
	NOTICE OF ORDER ISSUANCE	

The attached Initial Decision Upon Default was issued April 03, 2019 in the above referenced case.

Dated: April 16, 2019

/s/ Donna Childers

Donna Childers
Court Clerk

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. WILLIAM ROY CONNIFF, License No. LPC 14460, Respondent.	
CASE NUMBER: PCE 2018-0010	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners ("the Board") involving the license to practice as a professional counselor ("LPC") of William Roy Conniff ("Respondent"). The Board was represented by Senior Assistant Attorney General Jodanna Haskins. Respondent did not appear in this proceeding. Based upon Respondent's failure to file an Answer, an Entry of Default was issued on February 11, 2019. Respondent then had 10 (ten) days to show good cause why the Entry of Default should be set aside. Section 24-4-105(2)(b), C.R.S. A Motion to Set Aside Entry of Default was not filed and this matter is ready for issuance of an Initial Decision Upon Default.

FINDINGS OF FACT

1. The last address furnished by Respondent to the Board is 530 North 5th Avenue, Sterling, Colorado 80751-3022. The last email address provided by Respondent to the Board is williamconniff@yahoo.com.
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held, and the matters of fact and law asserted were mailed to Respondent by first class mail to the address stated above on November 28, 2018.
3. The Notice of Duty to Answer alerted Respondent that failure to respond to the Notice of Charges within 30 days could result in a default decision issued against Respondent's license to practice in the State of Colorado.
4. No written answer to the Notice of Charges has been filed by Respondent.

5. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above on January 16, 2019. Respondent did not file a response to the motion.

6. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above on February 11, 2019. Respondent did not file a Motion to Set Aside Entry of Default.

7. Respondent is deemed to have admitted all allegations in the Notice of Charges, which are incorporated herein as Findings of Fact.

CONCLUSIONS OF LAW

1. Respondent received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and all matters required by Section 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and over his license to practice as an LPC.

3. By virtue of Respondent's default, the Board is entitled to the relief requested in the Notice of Charges. See Section 24-4-105(2)(b), C.R.S.

4. The deemed allegations constitute violations of law as set forth in the Notice of Charges.

5. Respondent is subject to discipline pursuant to Section 12-43-224(2)(c)(II)(C), C.R.S., because he failed to submit to a neuropsychological examination, as required by and in violation of Section 12-43-224(2)(e), C.R.S.

6. Respondent is subject to discipline pursuant to Sections 12-43-223(1)(a)(I) and 12-43-224(2)(d), C.R.S., because he failed to comply with the September 20, 2018 Order by failing to submit to a neuropsychological examination, in violation of Section 12-43-222(1)(b), C.R.S.

INITIAL DECISION

When the Board has proven that a licensee has violated the licensing law, it may deny, revoke, or suspend the licensee's license to practice as an LPC. Section 12-43-223(1)(a)(I), C.R.S. Upon the failure of a licensee to submit to a mental or physical examination, the Board may summarily suspend the licensee's license to practice as an LPC. Sections 12-43-224(2)(c)(II)(C), (d), and (e), C.R.S. The Board seeks an order

upholding the Order of Summary Suspension issued by the Board to Respondent on November 21, 2018, and suspending Respondent's license to practice as an LPC until he submits to the required examination. Respondent failed to answer the Notice of Charges. There is no information before the Administrative Law Judge indicating that some sanction other than suspension of Respondent's license to practice as an LPC until he submits to the required examination is appropriate in this case. Respondent's failure to appear in this proceeding demonstrates a lack of interest in maintaining his license to practice as an LPC. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as an LPC is suspended until he submits to the required examination.

DONE AND SIGNED this 3rd day of April, 2019.

/s/ MICHELLE A. NORCROSS
Supervising Administrative Law Judge